

Order Granting Only Document-Specific Interim Sealing

Entered: May 8, 2026 **Synthetic docket:** SYN-CA4-26-CV-4106 **Panel:** Presiding Judge Vale, Judge Quill, and Judge Reed, fictional composite bench profiles

Findings and Scope

Upon consideration of DOE’s public motion and certificate under Fourth Circuit Local Rule 25(c), the Court grants interim restricted treatment only for the four controlled counterparts identified below. The restriction attaches to each listed filing individually and does not arise from their common subject.

- Sealed Highlighted Opening Brief of Open Grid Archive
- Sealed Highlighted Response Brief of DOE
- Sealed Highlighted Reply Brief of Open Grid Archive
- Sealed Joint Appendix Excerpts and Index

Each controlled document contains harmless fictional labels at semantic positions relevant to the parties’ exemption and judicial-access arguments. Although the labels disclose no authentic cyber information, immediate unrestricted access would erase the exercise’s designed distinction before the Court decides whether and how those positions should remain restricted. That temporary adjudicative interest is specific to the four counterparts and does not justify closure of the appeal.

The public motion, certificate, public briefs, public appendix excerpts, docket entries, argument materials, and judicial decisions remain available. Equal-page public counterparts provide the legal arguments, facts, arithmetic, and requested relief. The Court makes no present finding that every passage in a controlled document is exempt, that the district court’s broader restrictions were valid, or that continued sealing will be warranted after merits review.

Alternatives and Material-Specific Treatment

The Court considered unrestricted filing, closure of entire briefing events, replacement of controlled submissions with blank placeholders, and page-matched public redaction.

Unrestricted filing would destroy the semantic-placement comparison. Event-wide closure and blank placeholders would withhold public legal reasoning without need. Page-matched public counterparts are the least restrictive adequate alternative at this stage.

The restriction is document specific. A grant concerning the controlled opening brief does not authorize the response, reply, or appendix; the same is true in every direction. The shared subject of the filings is not a basis for restricting another document. Public counterparts must stay accessible throughout the interim period and may not be removed because a controlled version exists.

The findings apply only to the harmless labels and surrounding placement necessary for comparison. They do not convert an inert word into genuine government information or resolve the merits of 7(E), 7(F), segregability, or public access. If a revised public counterpart can expose additional meaningful prose without collapsing the comparison, a party may seek narrowing before final disposition.

Eligible Viewers and Revocable Sessions

Eligible viewers are Presiding Judge Vale, Judge Quill, Judge Reed, chambers and Clerk's Office personnel whose duties require review, and counsel of record Tamsin Roe, Leo Marr, and Corin Pell. Eligibility creates no standing entitlement. Nila Quen, agency declarants, program personnel, other parties, and members of the public are not included merely because the record names them.

For this synthetic exercise, the authored access policy requires an ordinary public load to expose only the public counterpart and leave the controlled asset unresolved. An authorized open must identify one controlled document and the exact resolved-pack closure, then verify the expected path, size, digest, readability, and page count from the designated content-addressed store before presenting a leased snapshot.

Revocation ends that lease, removes the controlled row, and restores the public-only projection. Reopening requires a new valid grant. Nothing in this order represents that an external court service, repository, or software product has implemented these controls. The order defines the policy boundary applicable to the authored synthetic record and directs the parties to preserve it in their submissions.

Duration, Review, and Public Notice

Restricted treatment begins upon entry of this order and remains interim. The Court will review each document's status when issuing the merits decision, when the mandate issues, or earlier upon a supported motion showing that a narrower treatment is available or the temporary need has ended.

Any request to continue restriction must address the particular document, the material still requiring protection, the source of the access right, available alternatives, and the proposed duration. A party may not rely solely on an agency exemption ruling or on the existence of another controlled filing. *Company Doe v. Public Citizen* requires judicial-record findings separate from the source-record withholding analysis.

The public docket shall continue to display the titles, filing dates, parties, existence of counterparts, this order, and all public versions. Oral argument shall proceed publicly as to public propositions. If the panel needs to address a controlled semantic position, it may use a bounded procedure that does not reveal the inert label on the public record. No part of this order authorizes introduction of real operational information.

Operative Terms

The motion is granted only to the extent stated. Interim restricted treatment applies to the four named controlled documents and to no other filing. Their public counterparts shall remain continuously available and shall retain equal page counts and corresponding subjects. The Clerk shall preserve ordinary public docket metadata.

Viewing is limited to the eligible persons listed above, for the particular controlled document and valid session. The authored policy's exact-closure and asset-verification conditions apply before a leased snapshot may appear. Revocation restores the public-only view. Access to one item confers no access to another, and no grant survives its session by implication.

The parties shall promptly report a change bearing on scope, alternatives, or continued need. This order is without prejudice to later narrowing, unsealing, or renewed material-specific findings. It decides no FOIA exemption or segregability issue and does not endorse the district court's broader access treatment.

Entered for the Court on May 8, 2026, by Presiding Judge Vale, with Judge Quill and Judge Reed joining. All names and institutional details are fictional.